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General Comment

America will never have dominance in AI if there are no protections first set in place against assets (including source code and training sets including audio, images, and video) being used or shared (e.g., leaked) without authorization. All this will do is ensure nothing legal can be done when other organizations inevitably get their hands on such material and publish their own competitive AI model. In such a scenario, what's stopping, let alone punishing, a disgruntled employee from leaking work outside of the parent company? Safe harbor laws don't address the issue of sensitive or proprietary material being shared by non-creators.

We already have national and international laws in place for protecting intellectual property, likeness, and identity, and other countries have had no issue following them (see the Berne Convention). Even China, purported AI competitor, recognizes the issues with mass produced AI slop competing with the original material. AI companies should respect these laws, just as all companies have in all of history, to ensure fair and just terms for the very innovators these AI companies heavily rely on for their products.

What makes AI development for media production and software development in general? Even in the most profitable mega-corporations, copyright and licensing has always been an important legal foothold that incentivizes and empowers creators of assets (code, audio, images, video, etc.) to produce high quality materials and distribute to trusted organizations at the creator's judgment and discretion for agreed-upon terms compensation. Companies have always been heavily scrutinized to ensure that they have the proper rights or licensing for whatever they compile into end products (media and software). Why should the rules be any different for AI development?

This AI Action Plan? America would just be doing free labor for others, with no leg to stand on in terms of rights or exclusivity. The ones who would most benefit from unfettered access to American creations would be greedy private companies and other countries, just sitting back twiddling their thumbs, waiting to swoop in and reap what America has sowed once these so-called "unnecessarily burdensome requirements" go down. America would be the prime target for espionage and leaks.

Intellectual properties laws empower creators, not companies. They protect innovations, not derivatives. AI proponents may argue fair use, but there is nothing transformative about loading billions upon billions of assets into source code and compiling software with no creative oversight. How else would one enforce rights of innovators or punish unlawful distribution? By employing the same intellectual property laws that have held even the largest media producers and tech companies to standard on a tight leash, such as Disney, Microsoft, Google, etc.

No company should be above the law, let alone so-called "AI" tech companies, who have boasted about AGI for years with plateauing improvements and barely, if at all functional practical uses for their products. We have seen AI winters come time and time again, in a cycle of unreasonable expectations hyped by false promises, and no return on investment in sight after billions granted by venture capitalists. The American government must not make the mistake of granting corporations free reign over innovators' rights just for the promise of dominance over a field rife with false advertising (grouping all manner of automation in the "AI" umbrella), obscured by science-fiction fantasy, and run by power-hungry corporations.